

1. Have obtained a high school diploma or its equivalent; or
2. Are a student enrolled in a public, private, or home school and attended school for at least 80 days in the fall or spring semester preceding the date of application; or
3. Have been enrolled for at least 45 days and are enrolled at the time of application in a program to prepare individuals to pass the high school equivalency exam.

This information is included on the Verification of Enrollment and Attendance (VOE) form issued by your school. Ask your school officials to complete and sign the VOE form. The VOE may not be dated more than 30 days before the date of application for a license during the school year or more than 90 days during the summer. The VOE must be presented to the license and permit specialist (LPS) when applying for an original or first time license.

Hardship License

A hardship license (previously known as Minor Restricted Driver License or MRDL) may be issued to a minor who establishes the necessity to drive and may have restrictions based on the qualifying hardship.

An application for a hardship license (DL-77) must be executed by an authorized adult on behalf of the minor. Both the adult and the minor must sign the form and present it in person at the driver license office. Only a parent, guardian, or person having custody of a minor may apply on behalf of a minor. If the minor does not have a parent, guardian, or custodian, then an employer or county judge may apply on behalf of the minor.

A person applying for a hardship license must:

1. Be at least 15 years of age but not more than 18
2. Complete and pass a driver education course (a driver education course includes both the classroom and behind the wheel phase), vision, knowledge, and driving exams
3. Meet all other requirements for a first-time driver license (original) applicant.

For more information, please visit our website, <https://www.dps.texas.gov/DriverLicense/teenDriver.htm>.

DPS may require supporting documentation or conduct an investigation to confirm the information provided on the application.

DPS will issue a hardship license if it is determined that:

1. Failure to issue the hardship license will result in an unusual economic hardship for the family of the minor applicant
2. The hardship license is necessary due to an illness, disability, or death of a family member
3. The hardship license is necessary because the minor applicant is enrolled in a vocational education program that requires a license for participation
4. A court order requiring the issuance of the hardship license is presented

Graduated Driver License (GDL)

Teenagers and young adults have the highest crash rates of all drivers, and motor vehicle crashes are the leading cause of death for U.S. teens. Young drivers make up 6.5 percent of the driving population but are responsible for 13 percent of fatal crashes. The Graduated Driver License (GDL) program eases teens into the driving experience by phasing in driving privileges and minimizing exposure to high-risk situations.

The GDL program applies to driver license applicants under 18 years of age and has contributed to a decrease in fatal crashes. As a part of this program, all new driver license applicants are required to pass a driving exam conducted at a driver license office or authorized testing facility.

The GDL program consists of two phases. Phase One applies to learner licenses. Phase Two applies to provisional licenses. All drivers less than 18 years of age must meet the licensing requirements for a learner license or provisional license, but they are also subject to additional requirements, including driver education and the GDL program.

Phase One: This phase requires applicants under 18 years of age to hold a valid learner, hardship, or combination of learner and hardship license for a minimum of six months prior to the issuance of a provisional license.

If your license is suspended during Phase One, then the initial six-month period is extended by the number of days of the suspension because your license is invalid during the suspension period.

A Texas learner license will be issued to new Texas residents who are at least 15 years of age, present an out-of-state instruction permit, and submit a VOE form. A Texas learner license must be held for six months from the date of issuance before the individual is eligible for Phase Two.

Phase One requirements do not apply to Class M (motorcycle) licenses. Under the GDL program, there is no minimum time a person must hold a restricted motorcycle license before applying for a Class M license.

Phase Two: Phase Two restricts the driving privileges of individuals until their 18th birthday following the issuance of a provisional license.